

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUPA040937: MARICRUZ E. MEDOWS vs GORAYA TRANS INC, et al.
07/07/2026 in Department 21

Motion for Issue, Evidentiary, and Monetary Sanctions in the Amount of \$3,000.00 Against Defendant Singh; Motion to Deem Requests for Admission, Set Two, Nos. 21–24 Admitted, and Monetary Sanctions in the Amount of \$1,000 Against Defendant Singh

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Plaintiff Maricruz E. Meadows’ Motion for Issue, Evidentiary, and Monetary Sanctions (*Unopposed*)
- (2) Plaintiff Maricruz E. Meadows’ Motion to Deem Requests for Admission, Set Two, Nos. 21–24 Admitted (*Opposed*)

Tentative Ruling:

1. Plaintiff Maricruz E. Meadows’ Motion for Issue, Evidentiary, and Monetary Sanctions against Defendant Kuldip Singh:

Plaintiff Maricruz E. Meadows’ Motion for Issue, Evidentiary, and Monetary Sanctions against Defendant Kuldip Singh is GRANTED in part.

The Court imposes the following issue sanctions:

1. It is established for purposes of this action that Defendant violated the May 4, 2026 order compelling his deposition.
2. It is established for purposes of this action that Defendant was negligent in connection with the subject collision.

3. It is established for purposes of this action that Defendant's negligence was a substantial factor in causing the collision.

The Court also imposes the following evidentiary sanctions:

4. Defendant is precluded from testifying at trial, submitting a declaration, or offering evidence contradicting the foregoing established facts or concerning matters that would have been the proper subject of his deposition, including his lookout, braking, attention, traffic-signal observations, and impact-related liability facts.

5. The request to deem established that Defendant was traveling at a speed sufficient to generate forces capable of causing Plaintiff's claimed head, neck, and back injuries is DENIED as overbroad. That issue approaches medical or biomechanical causation and is not sufficiently tailored to the deposition nonappearance. Similarly, in order to determine the force of impact, a biomechanical engineer and/or accident reconstruction expert may be able to utilize vehicle photos or conduct a vehicle inspection, and would be permitted to opine on impact issues of speed, Delta V, and G-forces without the need for Defendant's deposition and without any personal input from Defendant Singh.

Plaintiff's request for monetary sanctions is GRANTED in part. Defendant shall pay monetary sanctions in the amount of \$1,500 to Plaintiff's counsel within 30 days.

2. Plaintiff Maricruz E. Meadows 'Motion to Deem Requests for Admission, Set Two, Nos. 21-24 Admitted:

Plaintiff Maricruz E. Meadows 'Motion to Deem Requests for Admission, Set Two, Nos. 21-24 Admitted is GRANTED.

Here, Defendants concede that verified responses "have not been served and will not be served before the hearing." Defendants argue the RFAs concern ultimate liability issues and that deeming them admitted would be disproportionate. The argument is not persuasive. CCP § 2033.010 permits RFAs regarding facts, opinions relating to fact, and the application of law to fact, including matters in controversy. The fact that the RFAs concern fault, causation, comparative negligence, and signal color does not make them improper.

Nor does *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973 require denial. *Wilcox* concerns relief from deemed admissions, now governed by CCP § 2033.300, upon a proper showing. It does not permit the court to disregard CCP § 2033.280 where no substantially compliant responses have been served before the hearing.

Accordingly, RFAs Nos. 21-24 are deemed admitted.

Plaintiff's request for monetary sanctions is GRANTED. Defendant Kuldip Singh is ordered to pay Plaintiff monetary sanctions in the amount of \$1,000 within 30 days.

Plaintiff's counsel to give notice within two (2) court days.